

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RENY CASTILLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOSEPH O'SHEA, Shield No. 17016 (Tax Id. No. 964193), Individually and in his Official Capacity, P.O. JEFFERY WARD, Shield No. 22634 (Tax Id. No. 970308), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.
-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)**To the above-named Defendants:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
February 3, 2023

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, N.Y. 10279
(212) 374-9115

TO:

SLYVIA O. HINDS-RADIX
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. JOSEPH O'SHEA, Shield No. 17016 (Tax Id. No. 964193)
33rd Precinct
2207 Amsterdam Ave.
New York, NY, 10032-2512

P.O. JEFFERY WARD, Shield No. 22634 (Tax Id. No. 970308)
33rd Precinct
2207 Amsterdam Ave.
New York, NY, 10032-2512

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RENY CASTILLO,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. JOSEPH O'SHEA, Shield No. 17016 (Tax Id. No. 964193), Individually and in his Official Capacity, P.O. JEFFERY WARD, Shield No. 22634 (Tax Id. No. 970308), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff RENY CASTILLO by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff RENY CASTILLO is a Latino male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. JOSEPH O'SHEA, Shield No. 17016 (Tax Id. No. 964193), P.O. JEFFERY WARD, Shield No. 22634 (Tax Id. No. 970308), and POLICE OFFICERS "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about April 30, 2022, plaintiff RENY CASTILLO was lawfully in the vicinity of 2374 Amsterdam Ave., in the County, City, and State of New York.

9. At approximately 11:05 p.m., on the above-mentioned date and in the vicinity of the above-mentioned location, despite the fact plaintiff had not committed any crimes and/or violations of the law, plaintiff was seized by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, who grabbed him and immediately seized his person.

10. Thereafter, plaintiff attempted to ask why he was being arrested, as he had not done anything unlawful to warrant same, when multiple NYPD officers, including defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, began to assault plaintiff by forcefully pushing plaintiff, twice punching plaintiff about the stomach, forcefully twisting plaintiff's arms behind plaintiff's body, and then tasing plaintiff's person causing him pain and physical injuries, before placing plaintiff under arrest by handcuffing his arms tightly behind his back.

11. At no time was the force used against plaintiff – who was unarmed and not a threat – by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, as described in the proceeding paragraph, reasonable nor justified.

12. At no time on April 30, 2022, did defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 possess probable cause to arrest plaintiff.

13. At no time on April 30, 2022, did defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

14. Additionally, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 searched plaintiff's person and effects. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

15. At no time on April 30, 2022, did defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's person and/or effects nor did they obtain voluntary consent from him to do so.

16. At no time on April 30, 2022, did defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person and/or effects.

17. At no time on April 30, 2022, did plaintiff possess any contraband, weapons, and/or controlled substances, nor did plaintiff have custody and control over any contraband, weapons, and/or controlled substances, nor did plaintiff attempt to assault, assault, and/or harass any officers, nor did plaintiff commit petit larceny, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence, contraband, controlled substances, and/or weapons found on plaintiff's person or in his effects.

18. Thereafter, plaintiff requested immediate medical attention from defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 for his injuries as a result of being assaulted and tased by said officers. However, none was immediately provided nor was plaintiff immediately transported to a hospital.

19. Instead, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 placed plaintiff in an NYPD vehicle and transported him to a nearby police precinct.

20. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10.

21. Specifically, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 charged plaintiff with two (2) counts of Assault in the Third Degree, Petit Larceny, Attempted Assault in the Third Degree, Criminal Possession of Knives or Dangerous Instruments, and Harassment in the Second Degree. However, at no time did plaintiff commit any of the aforementioned crimes and/or offenses nor possess any contraband or weapons or have custody or control over same, nor did he behave unlawfully in any way.

22. After being detained at said precinct for several hours, during which time plaintiff was in pain and suffering from physical injuries and had requested medical treatment multiple times, plaintiff was finally transported to a nearby hospital for medical treatment.

23. While at the hospital, upon information and belief, plaintiff remained handcuffed and/or shackled.

24. After being released from the hospital, plaintiff was transported back to the precinct where he was further detained for several hours before he was eventually transported to Central Booking where he was searched, moved from cell to cell, and further detained until he was released following arraignment.

25. In connection with plaintiffs' arrest, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

26. Specifically, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 falsely stated that plaintiff had struck defendant O'SHEA about the face with a closed fist, causing a laceration to defendant O'SHEA's face and that plaintiff removed several items from defendant O'SHEA's belt, including keys and that plaintiff did not have permission or authority to take or possess this property. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 further falsely stated that defendant WARD had recovered a knife with a blade that was approximately six (6) inches long from plaintiff's jacket pocket.

27. As a result of the foregoing, plaintiff spent approximately two (2) days in custody before he was released following arraignment.

28. Thereafter, plaintiff was forced to make approximately two (2) additional court appearances, before all charges against him were adjourned in contemplation of dismissal on or about July 19, 2022, and ultimately dismissed and sealed in their entirety on or about January 18, 2023.

29. In addition, as a result of the foregoing, plaintiff suffered physical injuries, including, but not limited to, taser injuries (including pain and lacerations), pain and injury to his arms, shoulders, back, and neck, as a result of being forcefully arrested and handcuffed, and pain and abrasions to his stomach as a result of being punched, which required medical treatment.

30. Further, as a result of the foregoing, plaintiff's iPhone and keys, which were confiscated during his arrest, were not returned to him and plaintiff missed approximately one (1) day of work as a result of the incident, causing him to lose wages.

31. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, economic damages, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

33. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

34. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. As a result of the aforesaid conduct by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

40. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 created false evidence against the plaintiff.

43. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors that plaintiff had struck defendant O'SHEA about the face with a closed fist, causing a laceration to defendant O'SHEA's face and that plaintiff removed several items from defendant O'SHEA's belt, including keys and that plaintiff did not have permission or authority to take or possess this property. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 further falsely stated that defendant WARD had recovered a knife with a blade that was approximately six (6) inches long from plaintiff's jacket pocket.

44. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

45. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

46. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. The level of force employed by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 as set forth above, was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

49. Specifically, the defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 assaulted plaintiff by forcefully pushing him twice, punching plaintiff about the stomach, forcefully twisting plaintiff's arms behind plaintiff's body, and tasing plaintiff's person causing him pain and physical injuries, despite the fact plaintiff was unarmed, did not resist arrest, and was in no way posing a danger to the safety and security of the officers or anyone else.

50. In addition, upon information and belief, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 kept plaintiff handcuffed and/or shackled, during the entirety of his hospitalization, despite the fact plaintiff was injured and was not a flight risk nor a risk to the safety of said officers and/or others.

51. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, physical injury, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FIFTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

53. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 had an affirmative duty, and the opportunity to intercede when plaintiff's constitutional rights were being violated in defendants' O'SHEA, WARD, and/or "JOHN DOE" #1-10 presence by the use of excessive force and by fabrication of evidence.

54. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

55. As a result of the defendants' O'SHEA, WARD, and/or "JOHN DOE" #1-10 failure to intercede when plaintiff's constitutional rights were being violated in defendants' O'SHEA, WARD, and/or "JOHN DOE" #1-10 presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SIXTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S MEDICAL NEEDS UNDER
42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

57. Specifically, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, caused plaintiff's physical injuries, and then, when plaintiff requested immediate medical attention from

defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 for said injuries as a result of being assaulted and tased by said defendants, none was immediately provided nor was plaintiff immediately transported to a hospital.

58. Thereafter, while being detained at said precinct for several hours, plaintiff was in pain and suffering from physical injuries and requested medical treatment multiple times, but was not transported to a nearby hospital for medical treatment for several hours.

59. Likewise, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 knew that plaintiff had sustained physical injuries during his arrest which required treatment.

60. Notwithstanding this knowledge, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 refused to provide plaintiff with timely medical treatment and refused to ensure that plaintiff received the proper treatment.

61. In so doing, defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, exhibited a deliberate indifference to the health, safety, welfare, and medical needs of plaintiff, in violation of his constitutional rights as secured by the Fifth and Fourteenth Amendments to the Constitution of the United States.

62. As a proximate cause of the acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 plaintiff suffered *inter alia*, physical injury, upon information and belief, medical expenses, and mental and emotional anguish in connection with the deprivation of his aforementioned constitutional and statutory rights.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

64. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

65. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. handcuffing all hospitalized arrestees/prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- F. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- G. being deliberately indifferent to the health, safety, welfare, and/or medical needs of arrestees by failing to provide arrestees who officers know are physically injured, with timely medical attention; and,
- H. failing to intercede to prevent violations of plaintiff's constitutional rights; and
- I. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics and/or use excessive force.

66. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

67. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

68. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

69. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

70. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

71. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

**PENDANT CITY LAW CLAIMS PURSUANT TO
2021 N.Y.C. LOCAL LAW NO. 48, N.Y.C. ADMIN. CODE §§ 8 – 8802, ET SEQ.**

**FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – UNREASONABLE SEARCH & SEIZURE**

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

73. The acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

74. The acts of O'SHEA, WARD, and/or "JOHN DOE" #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

75. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately two (2) days in total.

76. By reason of the acts and omissions by defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

**SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – EXCESSIVE FORCE**

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

78. The acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

79. The acts of O'SHEA, WARD, and/or "JOHN DOE" #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

80. That defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff causing physical injuries.

81. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

83. The acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

84. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

85. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

87. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY UNREASONABLE
SEARCH/SEIZURE AND EXCESSIVE FORCE

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

89. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

90. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10.

91. The acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

92. The acts of O'SHEA, WARD, and/or "JOHN DOE" #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

93. That defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff and used excessive force against plaintiff.

94. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**FIFTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE**

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

96. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

97. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10.

98. The acts of defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

99. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against

unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

100. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants O'SHEA, WARD, and/or "JOHN DOE" #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

102. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
February 3, 2023

BY: 
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff

233 Broadway, Suite 900
New York, N.Y. 10279
(212) 374-9115
ifuchs@cohenfitch.com

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff RENY CASTILLO in the within-entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 3, 2023



ILYSSA S. FUCHS